04 NOV 2026

MR. ALEXANDER CHUNG
PARKWOOD GREENS EXECUTIVE PHASE II HOAI
9A Cleveland St., Parkwood Greens Executive Phase II
Maybunga, Pasig City
lexsch3@gmail.com

Dear Mr. Chung:

This refers to your letter requesting confirmation of the registration status of Parkwood Greens Executive Village Phase II Homeowners Association, Inc., and guidance on the procedures and documentary requirements for the segregation of a homeowners association.

Please be informed that, based on the records of this Office, Parkwood Greens Executive Village Phase II Homeowners Association, Inc. is currently recorded as active and maintains a distinct and separate registration. Accordingly, any inquiry concerning its registration history and other relevant documents, including possible changes in its juridical status, may be verified through the Association's official docket maintained by this Office.

With respect to your proposed segregation initiative, Section 38 of the 2024 Revised IRR of RA 9904 governs the segregation of a homeowners' association and the circumstances under which members may seek to separate from an existing association and establish a separate association. The applicability of this provision depends on the specific circumstances of the subdivision or community, including its territorial configuration, the existing association's coverage, and the grounds invoked in support of the proposed segregation.

Thus, the proposed segregation cannot be undertaken solely on the basis of the homeowners' preference to establish a separate association; the requirements and procedures prescribed under the applicable rules must first be satisfied.

Further, Section 39 of the 2024 Revised IRR of RA 9904 provides:

> The members intending to segregate from the existing association shall file with the Regional Office a verified petition for segregation together with the following:
>
> i. List of members intending to segregate from the existing association;
>
> ii. A certification stating that the remaining members of the existing association reside in a contiguous area such that the segregation will not affect the territorial integrity of the association

iii. A certification stating that the petitioners do not exceed half of the membership of the existing association;

iv. Minutes of the meeting of all members intending to segregate;

v. Result of the referendum on segregation showing that majority of all the members of the existing association agreed or consented to the segregation;

vi. The vicinity map of the subdivision/village or community showing the area sought to be segregated; and,

vii. Where the facilities of the subdivision project are commonly shared by all the phases of a subdivision project, a written agreement between the existing association and the proposed association defining the obligations and liabilities among them

Please also note that segregation is distinct from the reactivation or reconstitution of an existing registered association, as well as from merger, consolidation, or dissolution. Since the Association is currently recorded as active and maintains a separate registration with this Office, the proposed action should be evaluated under the rules applicable to segregation rather than treated as the establishment of a new association arising from the dissolution or revocation of the existing Association.

For this purpose, you are advised to personally visit this Office for preliminary guidance on the applicable procedure, documentary requirements, and filing process. You may likewise request the appropriate forms, checklists, and relevant issuances to ensure that the proposed petition is prepared in accordance with the prescribed requirements.

The foregoing guidance is intended to clarify the applicable procedures and does not constitute prior approval of the proposed segregation. The merits of any petition shall be determined upon its formal filing and evaluation of the supporting documents and compliance with the applicable laws and regulations.

We hope we have guided you.

Very truly yours,

JOSE ANTONIO A. LOPEZ
OIC-Assistant Regional Director
13/10/2026